



Gavin Newsom, Governor
State of California
Health and Human Services Agency
DEPARTMENT OF MANAGED HEALTH CARE
980 9th Street, Suite 500
Sacramento, CA 95814
Phone: 916-324-8176 | Fax: 916-255-5241
www.DMHC.ca.gov

March 10, 2026

VIA ELECTRONIC MAIL

Lea Anna Tonkin
Cigna HealthCare of California, Inc.
400 N. Brand Blvd. Suite 400.
Glendale, CA 91203

Re: Proposed Contract Termination with Empire Physicians Medical Group, Inc.
Block Transfer Filing No. 2026-PROV-94
Filed on March 5, 2026

Dear Ms. Tonkin:

The Department of Managed Health Care (Department) is reviewing the information in the above-referenced Block Transfer Filing (Filing) submitted by **Cigna HealthCare of California, Inc.** (Plan) for compliance with the requirements of the Knox-Keene Health Care Service Plan Act of 1975, as amended (Cal. Health & Safety Code § 1340 *et seq.*) and the regulations promulgated thereunder (Cal. Code Regs., Tit. 28, § 1000 *et seq.*).

In the event of contract termination, the Filing proposes to remove **Empire Physicians Medical Group, Inc.** (Terminating Provider Group) from the Plan's provider network. The effective date of contract termination between the Terminating Provider Group and the Plan (Termination Date) is currently **July 1, 2026**.

Please review the following comments and feel free to contact me if you would like to discuss any of the issues before filing the Plan's response.

1. Please confirm Empire Physicians Medical Group and Optum Care Network-Desert Cities refers to the same medical group.
2. Regarding the Enrollee Transfer Notice submitted for this Filing, the following information was found missing or incorrect. Please resubmit the Enrollee Transfer Notice for the Department's review to include the following:
 - a. "The following statement in at least 12-point font:

If you have been receiving care from a health care provider, you may have a right to keep your provider for a designated time period. Please contact

Protecting the Health Care Rights of More Than 30.2 Million Californians
Contact the DMHC Help Center at 1-888-466-2219 or www.DMHC.ca.gov

your health plan's customer service department, and if you have further questions, you are encouraged to contact the Department of Managed Health Care, which protects consumers, by telephone at its toll-free number, 1-888-466-2219, or at a TDD number for the hearing and speech impaired at 1-877-688-9891, or online at www.dmhca.ca.gov."

- b. Statement informing enrollees that they may contact the Plan for language assistance. This statement must include contact information.
3. Please provide the following for each proposed Receiving Provider Group:
 - a. Contract termination date,
 - b. In the case of an evergreen contract with any proposed Receiving Provider Group, please provide the Department with:
 - i. Contract renewal date(s), or
 - ii. If there is no specified renewal date(s), please state whether a notice of termination has been sent or received, and
 - iii. Confirm whether each evergreen contract will automatically renew.
4. To assess continuity of care for enrollees affected by the Block Transfer, please identify or confirm:
 - a. The number of affected enrollees who have been authorized or approved to receive a procedure or service from a provider within the Terminating Provider Group within 180 days of the Termination Date,
 - b. The number of affected enrollees who have been authorized or approved to receive a procedure or service within 180 days of the Termination Date from a hospital utilized by the Terminating Provider Group, but not utilized by the enrollee's Receiving Provider Group,
 - c. Whether a continuity of care and/or completion of covered services agreement exists between the Plan and the Terminating Provider Group. If no agreement exists, please provide an update on the progress, if any, of reaching an agreement.
5. Please indicate whether the Plan intends to send an Enrollee Notice to all Plan enrollees assigned to **Empire Physicians Medical Group, Inc.**

Please submit the Plan's response by **March 17, 2026**, via the Block Transfer portal as a "Response to Comment Letter."

Please contact me if there are any questions regarding the above.

Sincerely,

A handwritten signature in black ink, appearing to read 'Stacie Litovchenko', with a stylized, cursive script.

Stacie Litovchenko
Analyst II
Office of Plan Monitoring